

Instructions for Using this General-Use Template to Create a Proposed Amended Judgment (Family Law Case)

A Proposed Amended Judgment is **one** of a **set** of required documents that make up a written Motion to amend your family law Judgment. **All** of the following documents **must** be served on the other party (or parties) and filed with the Court:

- Notice of Motion;
- Motion
- Brief in Support of Motion;
- Declaration (or Affidavit) in Support of Motion;
- Other supporting documents;
- Proposed Order to Amend Judgment;
- **Proposed Amended Judgment**; and
- Declaration (or Affidavit) of Service by Mail.

For information on making a motion, go to ndcourts.gov/legal-self-help/making-a-motion.

This General-Use template may be used to create your proposed Amended Judgment when making a Motion to Modify a Judgment in a Family Law case.

To complete this form, you must completely recreate your Judgment by reviewing each paragraph carefully and by doing three things:

- 1) If you **aren't** requesting the Court to amend the contents of a paragraph of the Judgment or most recently Amended Judgment, you **must** copy that paragraph **exactly** as it is.
- 2) When you come to the paragraphs you want the Court to amend, copy and **underline** the **exact** wording of the amended paragraph from your proposed Order to Amend Judgment. **Don't include** any words you're asking Court to delete.
- 3) If you're asking the court to add new paragraphs, copy and **underline the exact** wording of each **new** paragraph from your proposed order.

ND Legal Self Help Center Staff and Court employees can't help you fill out forms, or create documents for you. If you're unsure how to proceed, consult a lawyer.

ND Legal Self Help Forms aren't official forms. Judges and courts aren't required to accept them. There's no guarantee Center forms will be accepted. Use at your own risk.

Don't include these instruction sheets when you serve or file the completed form.

An **Amended Judgment** is the recreation of the Judgment with all of the amendments or modifications ordered by the judge or judicial referee in their signed and dated order to amend judgment.

If you're making a Motion to Modify a North Dakota state district court family law Judgment, you're required to file a proposed Order to Amend Judgment and a proposed Amended Judgment.

If the judge or judicial referee grants your motion **and** uses your proposed Order to Amend Judgment and a proposed Amended Judgment, the judge or judicial referee signs and dates both documents.

You have two options to create your proposed Amended Judgment:

Option One: Use this fillable form as is. This form includes 9 blank pages in which you may type the words and formatting of your proposed Amended Judgment, including paragraph numbers. If your proposed Amended Judgment is more than 9 pages in length, use Option Two.

Option Two: Use a word processing program. Use a word processing program, such as Microsoft Word, WordPerfect, Google Docs, or OpenOffice, to type the words and formatting of your proposed Amended Judgment, including paragraph numbers.

Copy and paste the **entire** first page of this form, **except** the *italicized* paragraphs in (parentheses), into the first page of your document. Then, copy and paste all of the words on the second page of the form into your document.

Then, type the words and formatting of your proposed Amended Judgment, including paragraph numbers. Include the Clerk of Court date and signature block at the end.

Important: Make sure the formatting of the words you copied and pasted are the **same** as the formatting in this Amended Judgment general-use template.

Caption:

- ☐ Fill in the name of the County in North Dakota where the family law action, or case, is filed.
- ☐ Fill in the name of the Judicial District in North Dakota where the family law case is filed. (The County is within the Judicial District.) County and Judicial District information and maps are available at ndcourts.gov/court-locations.

- ☐ Fill in the full, legal name of the Plaintiff in the original family law case on the Plaintiff line.
- ☐ Fill in the full, legal name of the Defendant in the original family law case on the Defendant line.
- ☐ If the State of North Dakota or Child Support is listed as a party in interest on your family law case, add them to the caption as “A party in interest”.
- ☐ Fill in the case number. The case number is on the document you want to amend.
- ☐ Check if you’re amending the Judgment **or** write in the number of the Amended Judgment (*i.e., First, Second*) you want to amend.

Opening Paragraphs:

- ☐ Check if you’re the Plaintiff or Defendant.
- ☐ Check whether a hearing will be held.
 - ☐ If a hearing date and time has been set and you know that information, fill it in. Otherwise, leave that information blank.
- ☐ Check if you’re amending the Judgment **or** write in the number of the Amended Judgment (*i.e., First, Second*) you want to amend.

Body of Amended Judgment:

To complete the rest of the proposed Amended Judgment, you’ll need to refer to the Judgment, or most recently Amended Judgment, that you want to modify, **and** your proposed Order to Amend Judgment that contains the **Exact** wording.

If you **aren’t** requesting the Court to amend the contents of a paragraph of the Judgment or most recently Amended Judgment, you **must** copy that paragraph **exactly** as it is.

When you come to the paragraphs you want the Court to amend, copy and **underline** the **exact** wording of the amended paragraph from your proposed Order to Amend Judgment. **Don’t include** any words you’re asking Court to delete.

Add and **underline the exact** wording of each **new** paragraph from your proposed Order to Amend Judgment. Be sure to include the paragraph numbering.

Clerk's Signature Block:

- ☐ Fill in the number of the Order for _____ Amended Judgment (i.e., First, Second).
- ☐ Fill in the number of the Order for (Let the _____ Amended Judgment) (i.e., First, Second).

**** Don't** sign and date the (proposed) Amended Judgment. If your proposed Amended Judgment is accepted by the court, the clerk of court will sign and date the Amended Judgment. The proposed amended Judgment isn't effective until it's signed and dated by the clerk of court.

Page Numbering:

The pages of documents prepared for a civil case must be numbered.

Using the page numbering at the bottom of each page, number the pages of your (proposed) Amended Judgment.

- Count the total number of pages.
- Fill in the total number of pages in the **second** blank space of the page number on each page.
 - For example, if you have 4 total pages, the second blank space of the page number will look like this: "Page ____ of 4."
- Now fill in the **first** blank space of the page number on each page.
 - Fill in "1" in the first blank space of the page number on the first page.
 - Fill in "2" in the first blank space of the page number on the second page.
 - And so on for each page of your proposed Amended Judgment.
 - For example, if you have 4 total pages, the page number on each consecutive page will look like this: "Page 1 of 4," "Page 2 of 4," "Page 3 of 4," "Page 4 of 4."

Service:

In general, copies of documents filed, or intended to file, with the court must be provided to the other parties in the civil case. This is called service. **This includes serving the proposed Amended Judgment.**

There are specific requirements for serving documents. [Rule 4](#) and [Rule 5](#) of the North Dakota Rules of Civil Procedure give the requirements for service in a civil case.

Proof of service is an important step in the legal process. The court won't act on papers filed with the court until proof of service is filed.

For information about service and proof of service in a civil case, go to the [Service](#) link on the ND Legal Self Help Center webpage.

****Disclaimer: The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in North Dakota state courts. The information provided by the Center isn't intended for legal advice but only a general guide to the civil court process. The Center can't guarantee all judges and courts will accept forms available through the Legal Self Help Center. The Center isn't responsible for any consequences that may result from the information provided. The information can't replace the advice of a lawyer licensed to practice law in North Dakota. Use at your own risk.****

County Of _____

_____ **Judicial District**

Case No. _____

_____ Amended Judgment

(To complete the rest of this proposed Amended Judgment, you need to refer to the Judgment, or most recently Amended Judgment, that you want to modify, **and** your proposed Order to Amend Judgment that contains the **exact** wording of your proposed amendments.)

If you aren't requesting the Court to amend the contents of a paragraph of the Judgment or most recently Amended Judgment, you must copy that paragraph exactly as is.

When you come to the paragraphs you want to modify, copy and underline the exact wording of the amended paragraph from your proposed order. Don't include any words you're asking the Court to delete.

Add and underline the exact wording of each new paragraph from your proposed order to Amend Judgment. Be sure to include the paragraph numbering.)

It Is Hereby Ordered, Adjudged, and Decreed as follows:

That the ☐ Judgment ☐ _____ Amended Judgment entered herein on

_____ be, and hereby amended to read as follows:

Dated _____.

(Clerk of District Court)